

VCU332558 Serrano, Rosa Maria vs. The Villa Park Orchards Association

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-07-16

Motion: Motion to Compel Arbitration

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: 7136f04a80d6e0d0ba98a5a58e2878647a96c2cd54ab8788f14db0aa82938ff5

Re: Serrano, Rosa Maria vs. The Villa Park Orchards Association

Case No.: VCU332558

Date: July 16, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Motion to Compel Arbitration

Tentative Ruling: To continue the motion re: compliance with Rule of Court, rule 3.1110(g) to August 20, 2026; 8:30 am; D1.

Facts and Analysis

In this discrimination, retaliation, failure to prevent, failure to provide reasonable accommodation, failure to engage in interactive process and wrongful termination action, Defendant Villa Park moves to compel arbitration.

In support, Defendant provides the declaration of its Human Resources Manager, who indicates that Plaintiff, in 2022, was presented with the Arbitration Agreement in Spanish, her preferred language, and that Exhibit A is a true and correct copy of the executed Agreement in Spanish. (Declaration of Anguiano ¶¶5, 6 – Ex. A.) Further, that Exhibit B, also in Spanish, is a document explaining arbitration to Plaintiff. (Declaration of Anguiano ¶8 – Ex. B.) Further, the declarant states “Exhibit C is a true and correct copy of the 2022 Arbitration Agreement used by VPOA in English.” (Declaration of Anguiano ¶8 – Ex. C.)

California Rule of Court, rule 3.1110(g) which requires, as noted above: “Exhibits written in a foreign language must be accompanied by an English translation, certified under oath by a qualified interpreter.”

Defendant’s counsel, in an attempt to satisfy this rule, provides the declaration of an employed legal assistant who states: “I am fluent in both English and Spanish, and can read, write, and speak in both languages. During the last 11 years, I have undertaken various interpreting and translating tasks as part of my employment in the legal field.” (Declaration of Heredia ¶3.) The Court is readily familiar with certified interpreters who assist the Court with live testimony, including their qualifications, education, certification and licensing. While the declaration is under oath, there is an insufficient statement of qualifications,

including the statement “I am a qualified translator and interpreter and have undertaken numerous translation and interpreting activities during my career.” (Declaration of Heredia ¶3.)

Therefore, the Court continues this matter and orders a certified translation of Exhibits A and B to be filed no later than seven (7) days prior to the continued hearing set for August 20, 2026; 8:30 am; D1.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.